

Deepseek under international scrutiny: Balancing innovation and users' data protection

Juliette Faivre, a *PL&B* Correspondent, explains what is at stake in the field of AI where competition is strong and DPAs increasingly conduct investigations.

On 27 June, Meike Kamp, Berlin's Commissioner for Data Protection and Freedom of Information, requested tech giants Apple and Google to block the AI app DeepSeek due to serious privacy concerns. This news follows just months after DeepSeek R1 large language model (LLM) was launched in early 2025, significantly disrupting tech-related markets due to excitement and speculation around R1's impact on the entire industry.

A BOOM FOR THE AI MARKET

Prominent tech figure Marc Andreessen described DeepSeek's R1 launch as the "Sputnik moment"¹ for AI.

In DeepSeek's R1 release paper², researchers claimed that the model had a performance on a par with OpenAI's O1 model at the time (O1-1217), based on reliable industry benchmarks³. Strikingly, R1's performance was achieved at only 1/20th (\$5 million) of the reported cost to train OpenAI's models (\$100 million)⁴, given the remarkable reduction in chips used⁵. However, costs were later disputed as estimates did not account for key variables: i.e. "years of R&D, previous versions, infrastructure and operational costs"⁶, among others.

Regardless, DeepSeek's bargain pricing for enterprises, \$2.19 per million output tokens (see box) versus \$60 for OpenAI O1⁷, quickly drew the market's attention.

Moreover, as a surprising feat, DeepSeek open-sourced the R1 model on Hugging Face (a computer application company) and released it under the MIT license model, allowing unrestricted commercial use⁸.

The news prompted global tech investors to liquidate investments just days after R1's release. Both the

S&P500 and the Nasdaq fell by 2.3% and 3.6% respectively, while critical AI chipmaker Nvidia plummeted by 17%, melting away ~\$600 billion of its value⁹.

Could DeepSeek's paradigm-shifting technology ultimately replace the AI models crafted by Western giants like OpenAI, Google, and their peers?

A BREAKTHROUGH, A SMART STRATEGY, OR A BIT OF BOTH ?

While the model brings about certain technical innovation, researchers explain that DeepSeek's technology still fits the "transformer" generative AI model used in the industry¹⁰. Some claim¹¹ that the real difference lies in DeepSeek's model development strategy, as it challenges traditional AI scaling laws. Usually, LLMs go through pre-training (PT) where fundamental patterns and general reasoning are learnt, followed by supervised fine-tuning (SFT) for further refinement on human-labeled datasets of examples. Finally, a company engages in Reinforcement Learning (RL), where the model is fine-tuned to align its behaviour with

human preferences based on feedback¹².

While most companies heavily focus on those three steps, DeepSeek claims to have considerably reduced the first aspect (PT) and especially the second (SFT). R1 was primarily improved through RL, i.e. trial-and-error, reducing the need for large datasets and cost-intensive human labelling. Linking back to traditional AI scaling laws, "better model performance requires more training data and more computing capacity"¹³.

Therefore, DeepSeek's strategy challenges the "power-laws"¹⁴, as traditional performance drivers can be offset with novel approaches to model development (and other technical changes not covered in this analysis). Having unpacked DeepSeek's development, the conversation naturally shifts to end-user data practices.

YET USER (DATA) PROTECTION IS PARAMOUNT

Author John C. Havens mentioned "The key question isn't 'What can AI do?' but 'What should AI do?'".¹⁵ This quote reframes the discussion around the power and agency that AI companies have in designing technology, including handling user's data.

Data Collection: DeepSeek's latest version of the privacy policy (4 July 2025) states that the company collects personal data: 1) "provided by the users" (e.g. account details, prompts, uploaded files, ...), 2) "automatically collected" or "technical" (e.g. IP address, log data, cookies, ...) and 3) from "other sources" (e.g. third-party data, public data, ...). Most AI companies gather virtually the same categories of data, though grouped under different umbrella terms.

WHAT ARE TOKENS?

Tokens are the building blocks of text that AI models process. They can be as short as a single character or as long as a full word, depending on the language and context. Spaces, punctuation, and partial words all contribute to token counts. This is how the API internally segments your text before generating a response. Helpful rules of thumb for English:

- 1 token ≈ 4 characters
- 1 token ≈ ¾ of a word
- 100 tokens ≈ 75 words
- 1–2 sentences ≈ 30 tokens
- ~1,500 words ≈ 2,048 tokens

See: help.openai.com/en/articles/4936856-what-are-tokens-and-how-to-count-them

Nonetheless, it is essential to highlight that DeepSeek's privacy policy has evolved over time, as data collection practices have been adapted to the context. The first version of the policy included the collection of "keystroke patterns or rhythms"¹⁶. Analysts pointed out this same element in TikTok's highly controversial privacy policy¹⁷. DeepSeek's collection of biometric data caused a storm of reactions, which led the company to retract the element from its policy on 14 February. While this abrupt retraction raised "uncertainty and skepticism"¹⁸ according to analysts, DeepSeek's data collection practices appear broadly aligned with other approved standard tools.

Data sharing, retention and storage: However, the policy still raises concerns over its data sharing, retention and storage practices.

Data Sharing. The policy states that the collected data can be shared with "corporate partners", without providing any more details on the specific entities. AI researcher Snoswell pointed out that the term was more "permissive" than other AI companies¹⁹, and rightly so. In fact, in February, South Korea's Personal Information Protection Commission (PIPC) "uncovered evidence that DeepSeek had secretly been sharing data with ByteDance" (TikTok's parent company)²⁰, without users' consent. This is particularly relevant as DeepSeek's earlier privacy policy mentioned that the data collected could "help match you and your actions outside of the service"²¹, retracted in the later versions. A high level of (personal) data aggregation across services could lead to user profiling, jeopardizing anonymity.

Moreover, it is worth noting that TikTok is perceived as one of the world's most powerful algorithms; the New York Times even published an article on "How TikTok reads your mind"²². Hence, coupled with powerful algorithms (i.e. TikTok's), cross-platform user profiling could pose an even greater threat to privacy and security. Malicious actions could expose users to unconsented tracking or targeted manipulation.

Data Retention. Furthermore, the ambiguous data retention timeframe,

which is defined – or rather, undefined – as "as long as necessary"²³, raises concerns. The phrasing permits unlimited retention²⁴, although European regulators require concrete retention periods as per the European Data Protection Board (EDPB) Guidelines of 07/2020²⁵. This is even more relevant in a context where DeepSeek's policy states that it collects personal data to "improve and develop the Services, and to train and improve our technology, such as our machine learning models and algorithms"²⁶.

By authorising retention and intra-"corporate group" data sharing, the policy strips users of control over their information. Personal data could be used to train current or future models indefinitely, in a context where the corporate group may evolve (i.e. new services, or partners). Profiling could be replicated and enriched without renewed user consent. However, it is worth noting that users can "delete" their chats²⁷ in DeepSeek's settings, which should curb profiling.

Data Storage. Finally, DeepSeek indicates that the data is stored on servers in the People's Republic of China (PRC). This raises significant legal questions, given that data practices are subject to Chinese laws, which are different to European ones. Newspapers have reported that under China's National Intelligence law²⁸, local companies are legally bound to provide data if requested by the government²⁹. Interestingly, DeepSeek states these requests are "consistent with internationally recognised standards". Supplemental clauses have been appended to its policy for each country of the European Economic Area, the UK and Switzerland, since February.

INTERNATIONAL COUNTER-REACTIONS TO DEEPSEEK

DeepSeek's efforts in reviewing the privacy policy to match international standards should be acknowledged. However, significant discrepancies still exist, based on the previously discussed issues.

Latest reaction – Kamp's statement: The press release issued on 27 June by Berlin's Commissioner for Data Protection alleges DeepSeek is engaging in "illegal transfer of personal

data to China". According to the German DPA, DeepSeek has not been able to justify "appropriate safeguards"³⁰ for data transfers, based on Article 46(1) of the GDPR. Specifically, Kamp's argument refers to "convincing evidence that data of German users is not protected in China at a level equivalent to that of the European Union"³¹. This led the DPA to initially request DeepSeek to withdraw its apps from German stores on 6 May 2025, which the company did not act upon.

Therefore, the DPA enacted Article 16 of the Digital Services Act (DSA). The Article allows any individual or entity (the German DPA) to notify providers (Apple and Google), of the presence of illegal content in the services they host. According to the same article, providers should also inform the German DPA of the final decision, i.e. the enforcement of DeepSeek's ban, "without undue delay"³². While the Article does not outline a fixed timeframe, a comment is expected in the near future from the Big Tech companies.

Earlier international backlash: Kamp's request is merely a minor addition when seen against the history of backlash in the last months, since R1's launch. In fact, many DPAs have taken actions to challenge DeepSeek's data protection measures. For example, the UK's ICO³³, Ireland's DPC³⁴, France's CNIL³⁵, Italy's *Garante*³⁶ and South Korea's PIPC³⁷, as previously commented, have all launched investigations and sent "requests for information" to DeepSeek. Some have conducted more or less conclusive investigations. Additionally, Luxembourg's NCDP (National Commission for Data Protection)³⁸ and Poland's Personal Data Protection Office³⁹ (UODO) have issued statements strongly advising against the use of the app.

More recently, stricter measures have been adopted towards DeepSeek, such as bans. The Netherlands, the Czech Republic⁴⁰, Australia⁴¹, Taiwan, Belgium and the United States⁴² (through its "No Adversarial Act"), have issued bans that specifically target government bodies and officials. Others, such as Italy, have placed bans that prevent any individual residing on

the Italian territory to use DeepSeek, in theory⁴³. Nonetheless, feedback from some Italian users indicates that the ban may not be as effective as planned or only “partial”⁴⁴, as the web version of DeepSeek is still available – demonstrating the regulation’s flaws.

What response? In the context of this backlash, DeepSeek could adopt measures that address international regulations (e.g. European GDPR), by completely re-architecting its data handling. However, the feasibility and the trade-offs of such measures would be problematic in relation to Chinese laws. It is unlikely that DeepSeek could meet dual-compliance, both in Europe and in China (or “all-compliance” across the world), as some of the laws directly conflict with each other.

As previously discussed, some of China’s laws (e.g. National Intelligence Laws) prioritise other principles than the GDPR, which aims to protect users’ data from unauthorised and unconsented access. Moreover,

Chinese companies that own “critical information infrastructure” (CII) need to store the data locally in China⁴⁵, and the local Personal Information Protection Law (PIPL) has very strict conditions for sharing collected data overseas⁴⁶. This conflicts dramatically with European laws, such as the GDPR.

Alternatively, if DeepSeek chooses non-compliance, additional bans could follow if the situation does not resolve. After its launch, by late June this year, the app topped app store charts with more than three million downloads globally⁴⁷. A spillover effect of European and international bans could significantly slash the user base, affecting DeepSeek’s future development potential.

One solution, among others, could be diplomatic discussions beyond existing regulation, to come to cross-border agreements on DeepSeek’s data handling and AI development. The company would greatly benefit in being one of the only non-American

AIs, that typically dominate the market in Europe, if it respects the international laws.

CONCLUSION

DeepSeek has introduced meaningful shifts to the AI market, given its unique strategy and its decision to open-source its model. The company’s bold moves have helped intensify competition and accelerate innovation across the AI industry. However, the privacy policy still raises important concerns, such as the profiling issues. Despite some efforts towards international regulatory compliance, DeepSeek, and more broadly AI innovation, requires greater international coordination to protect user rights and data sovereignty.

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DATA PROTECTION & PRIVACY INFORMATION WORLDWIDE

Defending MAGA-speech: Trump's war on global data privacy

By **Graham Greenleaf**, Honorary Professor, Macquarie Law School, Australia.

Fifty years since the first data privacy laws in the early 1970s¹ the United States and Europe have reached a stalemate in their conflict over the global practices of surveillance capitalism.

National governments, particularly in the EU, through much stronger enforcement of data privacy laws, and competition and consumer

Continued on p.3

Australia seeks real-world privacy protections for children

Following the UK and Ireland, Australia is developing a Children's Online Privacy Code. Information Commissioner Carly Kind talked to **PL&B's Laura Linkomies** at the GPA in South Korea.

Things are moving fast in Australia. A consultation, including a meaningful opportunity for children to have their say, has now finished¹ and there will be a further statutory consultation period of 60 days on the draft code at

the beginning of 2026.

"Engagement by parents and children on the Code has been amazing. We received around 300 responses from them and many more

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comment

Global DPAs take a close look at AI in Korea

I was pleased to attend the Global Privacy Assembly in Korea in September where Data Protection Authorities and organisations from 95 countries discussed data protection issues with a heavy focus on AI.

While there is no global approach to AI, the Council of Europe's AI Convention tries to create a level playing field where it applies - public authorities and private entities acting on their behalf. The main piece of legislation is the EU's AI Act, adopted in May 2024. Korea itself adopted an AI Act in January 2025, to enter into force in January 2026.

The EU DPAs have been saying for some time that GDPR principles apply to AI and that this framework works well. In the US, the Trump administration is shaping US policy on AI with its AI Action Plan, and revoking the previous administrations' executive orders. Read an analysis by Professor Graham Greenleaf on US developments in the digital field on p.1.

However, there are many state level developments on AI in the US. For example in California, OpenAI is advocating that the state of California aligns its AI rules with international frameworks. It remains to be seen what influence the state-level activity will have at the federal level. Join us at the 4 November conference, in London and online, to find out (p.23).

In this issue, our correspondents analyse why Deepseek is under international DPA scrutiny (p.28) and what stance France's regulator is taking on AI in its recent guidance (p.18). Also, read on p.13 how the EU's privacy and AI regulatory framework governs automated decision-making, and how this is reflected in the CJEU's interpretation of these provisions.

In Korea, I also had an opportunity to interview Australia's Information Commissioner Carly Kind about her office's work on a children's code. Australia is now watched closely by many, also because of its radical policy to ban social media accounts for under 16s (p.1).

Laura Linkomies, Editor
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I consistently find that both the UK and International publications offer exceptional insights into all facets of data protection, ranging from regulatory requirements to practical lessons learned.



Sharon Terry, Senior Data Protection Manager, Equiniti Group

UK Report

Privacy Laws & Business also publishes *PL&B UK Report* six times a year, covering the Data (Use and Access) Act 2025, the Data Protection Act 2018, the UK GDPR and related regulatory changes, the Freedom of Information Act 2000, Environmental Information Regulations 2004 and Electronic Communications Regulations 2003.

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